

COLUMN No. I. Sections repealed, and extent of repeal.		COLUMN No. II. Sections amended and extent of amendment.	
Sec. 285	The words "for the "slaughtering of horses "or as a place of deposit "for the carcasses of the "animals."	Sec. 285	Instead of the words repealed, insert "as "a place of deposit for the carcasses of "horses."
		Sec. 295	Insert at beginning of section—"When re- "quested by the council to do so, or on "receipt of a special written report by "the firemaster that suspicion of wilful "fire-raising exists."
		Sec. 316	Subsection A (3)—after the word "gymna- "siums" insert "libraries and reading- "rooms not under the Public Libraries " (Scotland) Acts, 1887 and 1894."
Sec. 316B, sub-sec. 8.	The words from "and also" to end of subsection.	—	—
Sec. 365	The words, "the said ex- "penses."	Sec. 365	Instead of the words repealed, insert "the "expenses thereby incurred by them."
		Sec. 381	Subsection (13)—at end add "or foot- bridge."
Sec. 429	The whole section.	—	—
Sch. IV.	The last paragraph of Rule 18.	—	—

CHAPTER 34.

An Act to amend the Town Councils (Scotland) Act, 1900. [14th August 1903.]

WHEREAS it is expedient to amend the Town Councils (Scotland) Act, 1900:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Short title
and extent.
63 & 64 Vict.
c. 49.

1. This Act may be cited as the Town Councils (Scotland) Act, 1903; and this Act and the Town Councils (Scotland) Act, 1900 (herein-after called the principal Act), may be cited together as the Town Councils (Scotland) Acts, 1900 and 1903. This Act shall apply to Scotland only.

Entry of cer-
tain electors in
supplementary
list.

2. All persons who in respect of the ownership or occupancy of premises, within the municipal boundary of any burgh not returning or contributing to return a member or members to Parliament, possess the necessary qualification for voting in the election of a member of Parliament, but whose names are entered in the parliamentary register of the county in respect only of premises outwith the burgh, shall, unless otherwise disqualified, be electors of the burgh for the purposes of the principal Act, and the names of all such persons shall be entered in the supplementary list.

3. It shall not be competent to nominate or elect as councillor a person holding, at the time of nomination, the office of councillor of the same burgh, unless he falls to retire at the date of the election in question, or has intimated his resignation of office to take effect at or prior to the said date.

Existing
councillors
disqualified
for election.

4. Section twenty-three of the principal Act shall be amended by the insertion of the words "sheriff-substitutes, sheriff-clerks, sheriff-clerk deputes," after the word "peers," and by the insertion of the words "(otherwise than from rank, office or sex)" after the word "disability."

Sheriffs, &c
to be electors.

5. Section forty-seven of the principal Act is hereby repealed, and in place thereof the following enactment shall be substituted:—

Acceptance
and rejection
of nomination
papers.

If the names of the person nominated by any nomination paper and his proposers and assenters appear in the municipal register of a burgh without any disqualifying mark (the proposers and assenters, if the burgh is divided into wards, so appearing in respect of premises in the ward to which the nomination applies) and if the nomination paper is in or as nearly as may be in the form and contains the particulars prescribed by Schedule Four of the principal Act, the town clerk shall receive the nomination paper and deal with it as valid, but otherwise he shall reject the nomination paper, and the same shall be null and void.

6. In the case of parliamentary burghs, where the office of town clerk is not regulated by local Act, the tenure of office of the present and future town clerks shall be during the pleasure of the town council, provided that the town clerk shall not be removed from office, except by a vote passed in manner prescribed by section seventy-eight of the principal Act; and the words "and parliamentary burghs" occurring in the said section are hereby repealed.

Tenure of office
of certain
town clerks.

7. In any burgh where many electors are engaged in the fishing industry and often absent from home, in pursuance of their occupation, at the statutory date of the annual election of councillors, the town council may petition the Secretary for Scotland to determine that the annual retiral and election of councillors shall take place upon a date other than the first Tuesday of November, and, upon consideration of such petition and after such advertisement and enquiry as he shall deem proper, the Secretary for Scotland may determine that the said retiral and election shall thereafter take place on a day to be fixed by him in his determination, not earlier than the first Tuesday of November or later than the first Tuesday of February, and, in the event of the Secretary for Scotland so determining, he shall in such determination specify the consequential alterations in the dates mentioned in the principal Act, which are dependent upon the date of the annual election, and in any other dates so dependent, and thereupon the said date of retiral and election and other dates as aforesaid shall be altered accordingly, and the Secretary for Scotland may, on petition as aforesaid, vary or withdraw such determination. Subsections one and three of section ninety-three of the Local

Date of elec-
tion in fishing
burghs.

Government (Scotland) Act, 1889, shall apply to any inquiry ordered by the Secretary for Scotland under this section.

The Local Government Board for Scotland may, upon any such determination as aforesaid being issued, make such order as may be necessary to give effect to the provisions of the Local Government (Scotland) Act, 1894, respecting the election of parish councillors in such burgh, and may, by such order or by any subsequent order, make any necessary variation in the dates specified in the said Act, and determine any questions that may arise as to the election and proceedings of the parish council, and such determination shall be final.

Audit of
accounts.

8. Notwithstanding anything contained in the principal Act, but subject always to the provisions of section one hundred and nine thereof and of section ninety-three of the Greenock Corporation Order, 1901, the sections of that Act relating to accounts and corporate property shall apply and have effect in all burghs within the meaning of that Act, and, subject as aforesaid, all portions of local Acts inconsistent with or dealing with the same matters as the said sections are hereby repealed.

CHAPTER 35.

An Act to amend the Law with respect to Customs Duties in the Isle of Man. [14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Sugar duties. 1.—(1) There shall, as from the twenty-ninth day of May nineteen hundred and three, be charged, levied and paid, on the following articles removed or imported into the Isle of Man, the following duties of customs:—

	£	s.	d.
Sugar which, when tested by the polariscope, indicates a polarisation exceeding ninety-eight degrees - - - the cwt.	0	4	2
Sugar of a polarisation not exceeding seventy-six degrees - - - the cwt.	0	2	0
Sugar of a polarisation not exceeding ninety-eight degrees, but exceeding seventy-six degrees the cwt.	{ The intermediate duties shown in the table in the First Schedule to this Act.		
Molasses (except when cleared for use by a licensed distiller in the manufacture of spirits) and invert sugar and all other sugar and extracts from sugar which cannot be completely tested by the polariscope and on which duty is not specially charged by this section—			
If containing 70 per cent. or more of sweetening matter - - - the cwt.	0	2	9